

Om Prakash Puri v. Paschimanchal Vidyut Vitran Nigam & Ors.

High Court of Judicature at Allahabad · Division Bench · 1 September 2016 · WRIT - C No. 41276 of 2016 · **Writ dismissed; consumer relegated to statutory remedies under the Act and Supply Code.**

HEADNOTE

A writ seeking quashing of an electricity bill of Rs. 2,49,846 and a direction to issue a revised bill was dismissed. The Division Bench held that a factual billing dispute cannot be adjudicated under Article 226. The Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 being self-contained, the consumer was left to the statutory remedy under those enactments.

FACTUAL SUMMARY

Om Prakash Puri was granted a 2 KW domestic connection (Service Connection No. 240789) at House No. 17/124, Deputyganj, Bulandshahr, after applying in December 2004; supply was energized and a meter installed on 18.12.2004. In May 2016 he received a bill dated 6.5.2016 demanding Rs. 2,49,846. He approached the licensee to have the bill revised, then invoked Article 226 seeking quashing of that bill and a direction to issue a correct revised bill so that he could pay.

HOLDING-UNITS

INTERPLAY · UP-2005::6.5

[billing-dispute-article-226](#)

HOLDING

A factual dispute as to the correctness of an electricity bill cannot be adjudicated under Article 226. The Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 are self-contained; the consumer must pursue the statutory billing-objection remedy available under those enactments. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL DATED 6.5.2016 DEMANDING RS. 2,49,846

Left to the statutory remedy under the Electricity Act, 2003 and the Supply Code, 2005 ¶ 1